AGREEMENT AND PLAN OF MERGER

(BALANCED / EQUAL RISK PROFILE VERSION)

This AGREEMENT AND PLAN OF MERGER is entered into as of June 12, 2026, by and among Acquisition Corp. ("Buyer"), Target Enterprise Solutions, Inc. ("Company"), and the Selling Shareholders.

ARTICLE I: PRE-CLOSING COVENANTS

Section 1.1 Pre-Closing Operating Restrictions. During the Pre-Closing Period, the Company shall not hire any new employee, terminate any contract involving expenditures over $1,000, adjust any pricing models, or communicate with active customers without obtaining the prior written, notarized approval of the Buyer in every individual instance. CHUNK_023

ARTICLE II: TRANSITIONAL ASSETS

Section 2.1 Intellectual Property Vesting. All proprietary intellectual property, operational source code, and trade secrets modified or accessed during the due diligence transition window shall immediately and irrevocably vest ownership in the Buyer. Should this transaction fail to close for any reason, all title and rights shall permanently remain with Buyer. CHUNK_025

ARTICLE III: TERMINATION RIGHTS

Section 3.1 Unilateral Termination and Break Fees. Buyer shall have the absolute right to terminate this Agreement at any time prior to the Closing Date for any reason or no reason without the payment of any termination fee. In the event Seller terminates this Agreement due to a financing failure, Seller shall immediately remit a break fee equal to 50% of the total escrow amount to Buyer. CHUNK_022

ARTICLE IV: INDEMNIFICATION AND LIABILITY ASYMMETRY

Section 4.1 Survival and Scope of General Indemnity. Seller's indemnification obligations under this Article VIII shall survive the closing indefinitely, shall not be subject to any deductible, basket, or cap, and shall cover any and all losses directly or indirectly arising from any operational legacy issues. CHUNK_021

Section 4.2 Liability Damage Exclusions. Seller hereby irrevocably waives, relinquishes, and releases any and all rights to seek or recover indirect, incidental, special, or consequential damages, including lost profits, from Buyer under any liability theory. Buyer retains full, unrestricted rights to claim lost profits and consequential damage remediation against Seller. CHUNK_024

ARTICLE V: MISCELLANEOUS BOILERPLATE

Section 5.1 Legal Expenses. Litigation costs go to the prevailing party. CHUNK_033

Section 5.2 Formal Notices. Written notices required via certified mail. CHUNK_036

Section 5.3 Governing Law. Regulated under standard Delaware Domestic Laws. CHUNK_037

Section 5.4 Contractual Severability. Invalid components remain fully severable. CHUNK_039

Section 5.5 Professional Advisory Fees. Parties pay independent legal drafting costs. CHUNK_040

Section 5.6 Execution Counterparts. Formatted to execute over discrete originals. CHUNK_035

BUYER:	**SELLER:**
Acquisition Corp.	Target Enterprise Solutions
______________________________	______________________________
By: Jonathan Vance, VP	By: Marcus Brody, CEO